Establishing business in free zones

Entities established in free zones shall be subject to the laws and regulations governing the respective free zone authorities. The most significant benefits of the free zones in the State include:

- Free capital transfer.
- 100% ownership of fixed assets.
- Up to 100% foreign ownership in free zones.
- Up to 100% of profits return in special economic zones.
- Strong banking system with high levels of cashflow and government support of the banking sector.
- No restrictions on transfers.
- High value of currency and a fully convertible currency.
- Low inflation rate.
- Low custom tariff, 0 to 5% for almost all goods.

Steps of establishing business in free zones (generally)

Identifying the type of activity

Identifying the activity is the first step for obtaining a business license as the parties relating to such activity and the permitted legal forms are identified through the activity.

Types of licenses in free zones

Commercial license	Media license	Warehouse license
Consultancy/ service license	E-commerce license	Innovation license
Industrial license	Offshore companies license	Manufacturing license
Educational license	Freelancer license	Others

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Identifying the legal form

- Free zone entities in the State shall take one of the following legal forms:
  Free zone limited liability company
  Free zone company
  Free zone establishment
- These legal forms are not registered by all free zones.
- Below are the most available legal forms in all free zones. It is suggested to refer to the concerned body in the management of every free zone individually for inquiry about the legal structure available for the type of the activity to be carried on.

Registration of trade names

- In certain cases, registration of a trade name in free zones is subject to the same conditions applicable in the Department of Economic Development in the relevant Emirate.
- Free zones issue their own instructions and conditions.

Selection of business offices and facilities

- The options of purchase or rents of offices are available in free zones.
- For freelancer licenses, virtual offices are usually accepted.
- Office space requirements usually depend on the number of employees and the type of the business activity carried on by the company.
- The concerned free zone authority shall prepare the lease contract.
- Certain free zones have fully equipped office space that are ready for commencement of work or partially equipped office spaces that can be used on issuance of the business license.
- Public utilities and telecommunications shall be supplied by the free zone authority, including:
- 24-hour full technical support
- Telephone devices and connections
- Wireless internet connection
- Highest speed internet access
- Data network connection
- Internet phone calls
- Services and facilities vary from one free zone to another. In general, free zone authorities provide the following services and facilities:
- Inquiry, reservation and application for obtaining the trade name.
- Issuance of recommendation letters To Whom It May Concern.
- Issuance and renewal of visas.
- Investment and finance opportunities.
- Credit rating
- Providing legal consultancy
- Fully or partially equipped offices
- Warehouses
- Telecommunications
- Public utilities
- Modern IT infrastructure
- Secretarial services
- Copying and printing services
- Conference rooms equipped with audio and video media.
- Transportation
- Workers residence visas
- Assistance in recruitment
- Accommodation for employees and their families

Obtaining approval

- Certain types of activities are subject to additional approvals from the relevant UAE government authorities.
- General requirements for obtaining “initial approval” for issuance of license in the free zone:
- Initial approval application form, including all the required details.
- Business plan.
- Copy of the current commercial license/ registration certificate (if any).
- Colored copies of passports of shareholders of the company and the appointed manager.
- Registry Identification Code form for the appointed manager (original notarized copy is to be submitted).
- Copies of the signatures of the shareholders of the company and the appointed manager.
- No objection letter from the current sponsor (for individuals).
- Title deed of the real estate unit.
- Audited financial reports on the company’s balance sheet for two years, for corporate entities, or a reference bank certificate for individual shareholders.

For freelancing, the main requirements for obtaining an “initial approval” from the free zone are:

Submission of the registration application.

- Curriculum Vitae.
- Reference letter from the bank.
- Registry Identification Code form for the appointed manager (original notarized copy is to be submitted).

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Registration of the entity

- After obtaining the initial approval, registration fees and license fees shall be paid. The fees depend on the type of license applied for.
- For registration of business in the free zone, the following documents shall be submitted:

- Registration application with full details.
- Board of directors' resolution on appointment of the company's manager/ director (duly notarized and certified).
- Power of attorney authorizing the manager/ director (duly notarized and certified).
- Memorandum and articles of association of the company (duly notarized and certified).
- Specimen signature of the manager/ director (duly notarized and certified).
- A passport size photograph of the manager, with white background.
- Information on the contributed capital

Steps to start a business on the Free Zones

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